

Court No. - 1

Case :- WRIT - C No. - 2586 of 2020

Petitioner :- Hakimuddin

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Pawan Singh Pundir

Counsel for Respondent :- C.S.C.

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

As prayed, put up this matter as fresh on 11.02.2020.

Order Date :- 27.1.2020

Sanjeev

(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 37

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Petitioner :- Hakimuddin

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Pawan Singh Pundir

Counsel for Respondent :- C.S.C.

Hon'ble Abhinava Upadhyay, J.

Hon'ble Shamim Ahmed, J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel appearing for respondent no.2 Learned Standing Counsel represents the State-respondent no.1.

It is claimed that the father of the petitioner was a consumer of electricity and had a connection to run a tube well. The father of the petitioner died on 15.5.2000. It is submitted that the petitioner applied for disconnection and paid the reminder dues upto that time. It is further alleged that the licensee had removed wire etc. and also the connection yet the bill has been generated. The petitioner, however, deposited the amount in 2001 and thereafter also on 9.3.2008. Now again after such a long lapse, a demand notice has been issued demanding a sum of Rs.2,12,924/-.

According to the learned counsel for the petitioner, when there is no connection, how can the bill be generated.

Learned counsel for the petitioner has not been able to indicate any material on record to suggest that the petitioner had ever applied for disconnection according to the procedure under the Electricity Supply Code, 2005 (in short the Code).

The dispute raised in this writ petition is that with regard to the bill and the arrears which is covered under Clause 6.5 of the Code and the appropriate authority in this regard is the Executive Engineer. In case the petitioner makes an application before the Executive Engineer, the same shall be considered and decided in accordance with law, as far as possible, within a period of one month from today.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to demand notice dated 12th October, 2019.

With the aforesaid observation/direction, the writ petition stands finally disposed of.

Order Date :- 11.2.2020

SKM

(Shamim Ahmed,J.) (Abhinava Upadhyay,J.)